

FUNDAMENTAL RIGHTS

PART III • ARTICLES 12-35 • COMPLETE CORE -> REMEDY -> CONTROL RAIL

Answer line: Identify holder and respondent, apply exact text and named doctrine, then state remedy and qualification.

STAGE 01

PART III ARCHITECTURE AND REACH

CORE

PART III, ARTICLES 12-35
GATEWAY -> Article 12 defines State; Article 13 controls inconsistent law
RIGHTS -> 14-18 equality | 19-22 freedom | 23-24 exploitation
25-28 religion | 29-30 culture/education | 32 remedies
CONTROLS -> 31A-31C savings | 33-35 special powers

BENEFICIARY != RESPONDENT
citizens: 15, 16, 19, 29
persons: 14, 20, 21, 22, 23, 24, 25
Article 30 text: all minorities
direct private reach: 15(2), 17, 23, 24
legislation-mediated private reach: 15(5)

ANSWER ORDER: holder -> respondent -> right -> exact limit -> test -> remedy -> caveat.

STAGE 02

ARTICLE 12 STATE AND ARTICLE 226 PUBLIC-DUTY BOUNDARY

CORE

ARTICLE 12 EXPRESS BODIES	Union Government/Parliament State Government/Legislature local authorities
OTHER AUTHORITY / INSTRUMENTALITY	R.D. Shetty (1979) -> functional indicators Ajay Hasia (1981) -> form is not decisive Pradeep Kumar Biswas (2002) -> financial + functional + administrative domination of a pervasive character
INDICATORS: ownership/finance control public importance monopoly	transferred department cumulative real relationship
SEPARATE QUESTION:	not State under Article 12 -> may still perform a public duty -> Article 226 can reach the public-law element.

STAGE 03

ARTICLE 13, INVALIDITY DOCTRINES AND AMENDMENT ROUTE

CORE

ARTICLE 13
13(1) pre-Constitution law -> void to extent of inconsistency
13(2) State shall not make abridging law -> void to extent
13(3) ordinance/order/bye-law/rule/regulation/notification/custom/usage
13(4) constitutional amendment follows Article 368

DOCTRINES
severability -> workable valid residue + legislative intent
eclipse -> classic pre-Constitution law lies dormant.

may revive
waiver -> Bhasheshwar Nath (1959); holder cannot validate unconstitutional power
prospective overruling -> Golaknath (1967) calibrated temporal effect

AMENDMENT CONTROL
Shankari Prasad (1951) -> amendment not ordinary
Article 13 law
24th Amendment -> express Article 368 power + Article 13(4)
Kesavananda Bharati (1973) -> every Part amendable, basic structure not destructible.

STAGE 04

MANDATORY DOCTRINE TIMELINE

CORE

1950 A.K. GOPALAN -> narrow procedure; siloed rights
1951 CHAMPAKAM -> communal admission allocation invalid; First Amendment / 15(4)
1951 SHANKARI PRASAD -> amendment not ordinary law under Article 13
1967 GOLAKNATH -> prospective restriction on FR-amending power
1970 R.C. COOPER -> effect of State action; silos weaken
1973 KESAVANANDA -> amendment subject to basic structure
1978 MANEKA GANDHI -> fair, just, reasonable procedure; 14-19-21 link
1980 MINERVA MILLS -> limited amending power; Part III-IV harmony
1981 WAMAN RAO -> 24 April 1973 Ninth Schedule boundary
2007 I.R. COELHO -> later Ninth Schedule entries face basic-structure review
2017 SHAYARA BANO -> 3:2 10:9 split invalid; Nariman-Lalit opinion uses manifest arbitrariness
2017 PUTTASWAMY -> nine judges; privacy intrinsic to Article 21 and Part III
2018 NAVTEJ -> consensual adult same-sex intimacy decriminalised
2018 JOSEPH SHINE -> adultery offence invalidated
2020 ANURADHA BHASIN -> internet as medium; publication, review, proportionality.

STAGE 05

ARTICLE 14 EQUALITY CODE

CORE

TWIN EXPRESSIONS	equality before law -> negative / no privilege equal protection -> positive / like treatment in like circumstances
CLASSIFICATION	intelligible differentia + rational nexus to statutory objective = permissible classification; not class legislation
ANTI-ARBITRARINESS	E.P. Royappa (1974) -> equality opposes arbitrariness Maneka Gandhi (1978) -> non-arbitrary fair State action Shayara Bano (2017) -> manifest arbitrariness used in Nariman-Lalit opinion
SUBSTANTIVE EQUALITY	identical treatment can preserve disadvantage; clause-specific support may be constitutionally authorised.

STAGE 06

ARTICLES 15-16 AND RESERVATION CHRONOLOGY

CORE

ARTICLE 15
(1) religion/race/caste/sex/place of birth
(2) specified access prohibition -> direct private reach
(3) women/children | (4) SEBC/SC/ST
(5) admissions incl private aided/unaided; excludes Article 30(1)
(6) EWS incl up to 10%

ARTICLE 16
(1)-(2) public-employment equality
(3) residence by Parliamentary law
(4) backward class + inadequate representation
(4A) SC/ST promotion | (4B) backlog | (5) religious

office | (6) EWS

TIMELINE
Champakam 1951 -> First Amendment / 15(4)
Indira Sawhney 1992 -> creamy layer; ordinary 50% ceiling; no 16(4) promotion
77th/81st/82nd/85th -> promotion/backlog/standards/seniority
Nagaria 2006 / Jamal 2018 -> data, inadequacy, efficiency
103rd + Janhit 2022 (3:2) -> EWS upheld
Davinder Singh 2024 -> evidence-based SC sub-classification permitted.

STAGE 07

ARTICLES 17-18: CONSTITUTIONAL ANTI-HIERARCHY

CORE

ARTICLE 17	untouchability abolished; practice in any form forbidden disability enforcement punishable by law direct horizontal reach Protection of Civil Rights Act 1955 SC/ST (Prevention of Atrocities) Act 1989 LIMIT: historical caste meaning, not every social avoidance
ARTICLE 18	State shall not confer titles except military/academic distinctions citizen cannot accept title from foreign State office-holder controls on foreign title/present/employment Balaji Raghavan (1996): Bharat Ratna/Padma are not prohibited titles but cannot be used as prefixes/suffixes TRAP: Article 17 belongs to equality, not exploitation.

STAGE 08

ARTICLE 19 FREEDOMS AND EXACT RESTRICTION GROUNDS

CORE

ARTICLE 19(1); CITIZENS ONLY
(a) speech/expression -> 19(2): sovereignty/integrity; State security; friendly relations; public order; decency/morality; contempt; defamation; incitement
(b) peaceful unarmed assembly -> 19(3): sovereignty/integrity; public order
(c) association -> 19(4): sovereignty/integrity; public order; morality
(d) movement + (e) residence -> 19(5): general

public; ST protection
(g) profession/trade/business -> 19(6): general public; qualifications;
State monopoly

DISTINCTIONS
press freedom derives from 19(1)(a)
no Fundamental Right to strike
foreign travel -> Article 21, not 19(1)(d)
listed grounds are closed and not interchangeable.

STAGE 09

SPEECH, PRESS, DIGITAL MEDIUM AND CURRENT CRIMINAL-LAW BOUNDARY

CORE

1950 Romesh Thappar / Bri Bhusan -> circulation and prior restraint
1951 First Amendment -> reasonable + public order + friendly relations + incitement
1962 Kedar Nath Singh -> old 124A upheld through incitement/public-disorder reading
1963 Sixteenth Amendment -> sovereignty and integrity
2015 Shreya Singhal -> 6:6A split; 6:6A retained with safeguards; 7:9 read down
2020 Anuradha Bhasin -> speech/trade through internet; orders published, reviewed and proportionate; no indefinite suspension
2024 Electoral Bonds -> political-funding information under 19(1)(a); unlimited corporate-contribution change arbitrary
1 JUL 2024 BNS 152 operative -> distinct succession/rebellion/subversion text
26 AUG 2025 vires notice -> no located final merits decision by 7 SEP 2026
TRAP: internet is a medium of protected freedoms, not an unlimited standalone holding.

STAGE 10

ARTICLE 20 CRIMINAL SAFEGUARDS

CORE

ARTICLE 20: ALL PERSONS	20(1) no retrospective offence or enhanced penalty beneficial retrospectivity may operate 20(2) no prosecution AND punishment twice for same offence not every departmental/civil consequence 20(3) accused + compulsion + testimonial communication against self
EVIDENCE BOUNDARY	Kathi Kati Oghal (1961) -> fingerprints/handwriting/physical material distinct Selvi (2010) -> involuntary narco/polygraph/brain mapping violates protection
EMERGENCY CORE	Article 359 order can never include Article 20 after the 44th Amendment.

STAGE 11

ARTICLE 21 EVOLUTION, DIGNITY AND DERIVED RIGHTS

CORE

A.K. Gopalan (1950) -> narrow procedure and silos
R.C. Cooper (1970) -> effects approach; silos weaken
Maneka Gandhi (1978) -> fair, just, reasonable procedure + 14-19-21 interlock

NAMED DERIVED-RIGHT ANCHORS
Francis Coralie -> dignity
Hussainara Khatoun -> speedy trial
M.H. Hoskot -> legal aid
Olga Tellis -> livelihood + fair procedure, not no-

eviction immunity
D.K. Basu -> arrest safeguards/compensation
Parmanand Katara / Paschim Banga -> emergency medical care
environmental cases -> clean air/water
Shafin Jahan -> adult marital choice

LIMIT: judicially enforceable floor, not an unlimited welfare-policy code.

STAGE 12

PRIVACY, AUTONOMY, DNA AND DATA STATUS

CORE

PUTTASWAMY (2017), NINE JUDGES	body + decisional + informational privacy legality -> legitimate aim -> proportionality -> procedural safeguards
AUTONOMY	Navtej (2018) -> consensual adult same-sex intimacy Joseph Shine (2018) -> adultery offence invalidated Supriyo (2023) -> Court did not rewrite SMA to create same-sex marriage review dismissed -> 9 January 2025
DNA / PATERNITY	body integrity + truth + child's dignity Bhabani Prasad Jena -> eminent need / caution BSA 2023 section 116 -> legitimacy presumption and non-access
DPDP: G.S.R. 843(E)/846(E), 13 NOV 2025 -> phased commencement;	whole regime not operative on 7 SEP 2026.

STAGE 13

ARTICLE 21A AND ARTICLE 22

CORE

ARTICLE 21A
Mehar Jain 1992 -> education/dignity
Unni Krishnan 1993 -> bounded entitlement
86th Amendment 2002 -> free/compulsory education, ages 6-14
RTE Act 2009 -> implementation
25% obligation -> covered non-minority unaided schools
Pranati 2014 -> Article 30 minority-institution boundary
below six -> Article 45 | parent/guardian duty ->

21A(k)
ARTICLE 22
ordinary arrest -> grounds + lawyer + magistrate within 24 hours
preventive detention -> separate clauses (4)-(7), grounds/representation
operative no-Board ceiling -> three months
44th Amendment two-month substitution -> not commenced.

STAGE 14

ARTICLES 23-24 EXPLOITATION

CORE

ARTICLE 23
trafficking | begar (forced unpaid labour) | similar forced labour
available to persons; applies against State and private actors
PUOR (1982) -> economic compulsion / below legal minimum can be forced labour
Bandhua Mukti Morcha (1984) -> bonded labour + dignity + enforcement
23(2) compulsory public service allowed without religion/race/caste/class bias

ARTICLE 24
child below 14
no factory, mine or hazardous employment

STATUTORY LAYER
Bonded Labour System (Abolition) Act 1976
Child and Adolescent Labour Act 1986, amended 2016

TRAP: constitutional Article 24 and the broader statute are not identical.

STAGE 15

ARTICLES 25-28 AND PRINCIPLED-DISTANCE SECULARISM

CORE

ARTICLE 25 -> all persons; conscience; profess/practise/propagate	limits: public order, morality, health, other FRs 25(2): secular regulation + social reform Rev. Stanislaus 1977: propagate != force/fraud conversion
ARTICLE 26 -> denominations	institutions religious affairs property public order, morality, health; autonomy != maladministration
ARTICLE 27 -> no specifically appropriated religion-promoting tax	general tax / regulatory fee require separate analysis
ARTICLE 28	wholly State-maintained -> no instruction State-administered trust/landowment -> permitted recognised/aided -> no compelled attendance without consent
MODEL: protection + equal engagement + secular regulation + reform.	

STAGE 16

ERP AND ARTICLES 29-30

CORE

ESSENTIAL RELIGIOUS PRACTICES
Shirur Mutt (1954) -> religious/secular distinction;
declined essentially
Durgah Committee (1961) -> narrower filter
sequence: claimant -> religious/secular -> essentiality -> explicit limits
-> competing rights/reform -> proportionality
defence: protected religious core
criticism: judges as theologians; frozen textual religion
Sabarimala: state 2018 majority only absent later final verified authority

ARTICLE 29
(1) any section of citizens: language/script/culture
(2) no citizen denied covered admission only on religion/race/caste/language
not minority-exclusive

ARTICLE 30
religious/linguistic minorities establish/administer institutions
T.M.A. Pai (2002): generally State-wise minority unit
St Xavier's / P.A. Inamdar: autonomy with regulatory excellence.

STAGE 17

ARTICLE 32, ARTICLE 226 AND FIVE WRITS

CORE

ARTICLE 32	itself a Fundamental Right Supreme Court forum for Part III enforcement original but not exclusive; Ambedkar's 'heart and soul'
ARTICLE 226	High Court -> Fundamental Rights + other legal rights + public duties wider subject matter and non-State public-duty reach
WRIT BY DEFECT	habeas corpus -> unlawful detention, including private detention mandamus -> compel public duty prohibition -> stop threatened jurisdictional excess certiorari -> quash completed defective order quo warrant -> test legal authority to public office
PIL: relaxed standing/access device; full institutional doctrine belongs Topic 18.	

STAGE 18

SAVINGS, PROPERTY, SPECIAL POWERS AND EMERGENCY DISTINCTION

CURRENT + EXAM

31A -> specified reform categories; defined Article 14/19 protection
31B -> Ninth Schedule
Waman Rao 1981 + I.R. Coelho 2007 -> post-24 APR 1973 review
31C -> genuine Article 39(D)(i) laws; not every DPSP
Minerva Mills 1980 -> extension invalid
Property Owners Association 2024 -> original clause survives;
not every private asset qualifies
300A -> every person; authority of law; constitutional

not Fundamental Right
33 -> Parliament tailors FRs for specified services
34 -> indemnity/validation where martial law existed
35 -> Parliament-only listed Part III legislation
35B -> automatic Article 19 effect only in war/external-aggression Emergency
35B -> Presidential order; specified enforcement; never Articles 20 or 21
MARTIAL LAW != NATIONAL EMERGENCY.

STAGE 19

CURRENT STATUS, PYQ RAIL AND ANSWER SPINE

CURRENT + EXAM

CURRENT STATUS CHECKED 7 SEPTEMBER 2026
Electoral Bonds (15 FEB 2024) -> funding information / Article 18(1)(a)
Davinder Singh (1 AUG 2024) -> evidence-based SC sub-classification allowed
Property Owners Association (5 NOV 2024) -> original Article 31C survives
Supriyo review (9 JAN 2025) -> dismissed: no Navtej-to-marriage overstatement
BNS 152 -> notice 28 AUG 2025; no located final merits decision
DPDP -> phased commencement; later searches still future
Harish Rana (11 MAR 2026) -> CANH withdrawn within passive-euthanasia safeguards;
active euthanasia not legalised

PYQS
Mains 6: 2019 secularism; 2021 equality; 2022 movement; 2023 life/gender;
2024 privacy/DNA
Objective 15: 2018-2026; only held final local-official key is 2024 Q76 = D

ANSWER SPINE
claim -> exact Article -> named case/statute -> mechanism -> counter-position
-> qualification/current status -> remedy -> graded conclusion.